

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

— vs. —

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

COMPLAINANT’S STATUS REPORT

Complainant herein submits this Status Report to make the Commission aware of changes in status regarding the above captioned matter.

Brief Procedural History Regarding Respondents Filing of a Petition for Attorney’s Fees

The Commission may recall that on April 21, 2017 a Memorandum Opinion and Order was issued (Document 94) which granted, in part, Complainant’s motion to withdraw its Exceptions and to discontinue this action, and which resulted in the Initial Decision on Respondents’ Motion for Partial Summary Decision of September 15, 2015 (Document 67) (which dismissed complainant’s complaint) becoming administratively ‘final’. Pursuant to the April 21, 2017 Order, the Commission at that time also denied the portion of complainant’s motion requesting that the Commission extinguish the ability of either party to seek attorney fees herein, explaining that it would “...be inappropriate for the Commission to terminate a party’s statutory right to seek attorney fees based on the unilateral request of the opposing party.” (Id. at p. 13)

_____ as set forth in the following docket

- A. Complainants' Reply on their Motion to Withdraw Appeal and Discontinue Action, dated September 2, 2016 (Documents 81 and 82)
- B. Complainant's Motion to Strike Respondents' Unauthorized Sur-Reply, Made without Leave of the Presiding Officer or the Commission, and/or for Leave to Interpose a Response to Same, dated March 12, 2017 (Document 92)
- C. Complainant's Motion for an Extension of Time to File a Response to Respondents' Petition Regarding Attorney Fees, dated August 4, 2017 (Document 99)
- D. Complainant's Second Motion for an Extension of Time to File a Response to Respondents' Petition Regarding Attorney's Fees, dated August 15, 2017 (Document 102)
- E. Complainant's Reply to Respondents' Petition Regarding Attorney Fees and Request for an Evidentiary Hearing, dated August 22, 2017 (Document 105)

Complainant Has Now Sought the Intervention of the Federal Court Due To Respondents' Breach of the Settlement Agreement [REDACTED]
[REDACTED]

The purpose of the instant Status Report is to inform the Commission that on Friday, October 13, 2017 at 3:45 p.m., the Honorable Magistrate Judge Mark Falk of the U.S. District Court for the District of New Jersey has ordered the parties herein to appear for a telephonic conference on the issues discussed herein, [REDACTED]
[REDACTED]

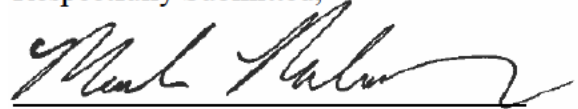
[REDACTED] (A copy of the Orders are annexed hereto as Appendix "1")¹.

In the letter to the Court of October 4, 2017 requesting the scheduling of said conference (a copy of which is annexed hereto as Appendix "2"), Complainant requests that the Court compel respondents to [REDACTED]
[REDACTED]
[REDACTED]

Accordingly, it is respectfully submitted that any rulings or Orders by the Court arising out of the conference regarding the Settlement Agreement may impact the forthcoming decision on Respondents' Petition Regarding Attorney's Fees.

Dated: October 12, 2017
Brooklyn, New York

Respectfully Submitted,



Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

¹ The Court's original scheduling Order was adjourned on request of respondents' Counsel. Both Orders are attached.

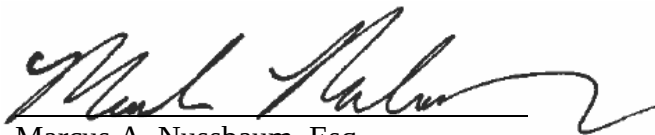
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' STATUS REPORT** and **APPENDIX** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
Attorneys for Respondents
636 Morris Turnpike
Short Hills, NJ 07078

by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", with a long, sweeping horizontal line extending to the right.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
October 12, 2017